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[TENTATIVE] ORDER DENYING NON-PARTY ESLY FOMBONA'S MOTION TO INTERVENE

I. INTRODUCTION

This is a sexual abuse action where Plaintiffs Jane Doe KC 1, Jane Doe 3, Jane Doe 4 allege Defendants Gloria De Los Angeles Trevino Ruiz aka Gloria Trevi (herein "Defendant Ruiz" or "Ms. Ruiz"); Sergio Gustavo Andrade Sanchez aka Sergio Andrade; and Maria Raquenel Portillo Jimenez aka Mary Boquitas and Mary Raquenel (herein "Defendant Andrade" and Defendant Portillo") sexually abused Plaintiffs while Plaintiffs were children.

On August 14, 2026, nonparty Esly Fombona ("Fombona"), in pro per, filed the instant motion for leave to intervene pursuant to Code of Civil Procedure section 387. On September 2, 2026, Plaintiffs filed an opposition. On September 8, 2026, Fombona filed a reply.

II. LEGAL STANDARD

"An intervention takes place when a nonparty, deemed an intervenor, becomes a party to an action or proceeding between other persons by doing any of the following: (1) Joining a plaintiff in claiming what is sought by the complaint. (2) Uniting with a defendant in resisting the claims of a plaintiff. (3) Demanding anything adverse to both a plaintiff and a defendant." (Code Civ. Pro. § 387 subd. (b)(1)-(3).) "A nonparty shall petition the court for leave to intervene by noticed motion or ex parte application. The petition shall include a copy of the proposed complaint in intervention or answer in intervention and set forth the grounds upon which intervention rests." (Code Civ. Pro. § 387 subd. (c).)

"The court shall, upon timely application, permit a nonparty to intervene in the action or proceeding if either of the following conditions is satisfied: (A) A provision of law confers an unconditional right to intervene. (B) The person seeking intervention claims an interest relating to the property or transaction that is the subject of the action and that person is so situated that the disposition of the action may impair or impede that person's ability to protect that interest, unless that person's interest is adequately represented by one or more of the existing parties." (Code Civ. Pro. § subd. 387(d)(1)(A)-(B).) "The court may, upon timely application, permit a nonparty to intervene in the action or proceeding if the person has an interest in the matter in litigation, or in the success of either of the parties, or an interest against both." (Code Civ. Pro. § 387 subd. (d)(2).)

"If leave to intervene is granted by the court, the intervenor shall do both of the following: (1) Separately file the complaint in intervention, answer in intervention, or both. (2) Serve a copy of the order, or notice of the court's decision or order, granting leave to intervene and the pleadings in intervention as follows: (A) A party to the action or proceeding who has not yet appeared shall be served in the same manner for service of summons pursuant to Article 3 (commencing with Section 415.10) of Chapter 4 of Title 5 of Part 2. (B) A party who has appeared in the action or proceeding, whether represented by

an attorney or not represented by an attorney, shall be served in the same manner for service of summons pursuant to Article 3 (commencing with Section 415.10) of Chapter 4 of Title 5 of Part 2, or in the manner provided by Chapter 5 (commencing with Section 1010) of Title 14 of Part 2. (Code Civ. Pro. § 387 subd. (e).)

The court permits intervention when the following factors are met: (1) the proper procedures have been followed; (2) the nonparty has a direct and immediate interest in the action; (3) the intervention will not enlarge the issues in the litigation; and (4) the reasons for the intervention outweigh any opposition by the parties presently in the action. (*Siena Court Homeowners Ass'n v. Green Valley Corp.* (2008) 164 Cal.App.4th 1416, 1428. CCP § 387 should be liberally construed in favor of intervention. (*Simpson Redwood Co. v. State of California* (1987) 196 Cal.App.3d 1192, 1200.)

III. ANALYSIS

Fombona argues that he should be granted leave to intervene under Code of Civil Procedure section 387 and thereafter permitted to strike allegedly false and defamatory statements from the record under section 436. Fombona states that he is an independent journalist residing in Arizona and contends that Jane Doe 3 made false statements about him in an August 3, 2026, declaration, including accusations of harassment and stalking. Fombona argues he has a fundamental interest in protecting his reputation, livelihood, and safety. (Motion, pp. 3-4.)

Fombona argues that he has a direct and immediate interest in this action because the challenged statements concern him personally and have been placed in the public record. He further argues that the existing parties do not adequately represent his interests because none has an incentive to defend his reputation or address the alleged harm caused by the statements. (Id. at p.4.)

The Court is not persuaded.

First, Fombona failed to comply with the mandatory requirements for intervention. Specifically, Code of Civil Procedure section 387, subdivision (c) requires that the petition include a copy of the proposed complaint in intervention or answer in intervention. Fombona's moving papers included neither. Although Fombona attaches a proposed limited complaint in intervention to his reply, submission of the proposed pleading for the first time on reply deprives the opposing parties of an opportunity to address the pleading in their opposition. The Court therefore declines to treat the belated filing as curing the defect.

Even assuming the procedural defect could be cured, Fombona fails to establish the direct and immediate interest necessary for intervention.

It is well settled that the intervenor's interest in the matter in litigation must be direct, not consequential, and that it must be an interest which is proper to be determined in the action in which intervention is sought." (*Simpson Redwood Co. v. State of California* (1987) 196 Cal.App.3d 1192, 1199-1200.) Furthermore, "the interest which entitles a party to intervene must be an interest in the matter in litigation in the suit as originally brought, and of such a present, direct and immediate character that the intervenor will either gain or lose by the direct effect of the judgment. [Citations.] An intervenor cannot be permitted to broaden the scope or function of such special proceeding by urging claims or contentions which have their proper forum elsewhere." (*People v. Brophy* (1942) 49 Cal.App.2d 15, 34-35 (emphasis in original).)

An interest is consequential and thus insufficient for intervention when the action in which intervention is sought does not directly affect the proposed intervenor, although the results of the action may indirectly benefit or harm the proposed intervenor. (*Continental Vinyl Products v. Mead Corp.* (1972) 27 Cal.App.3d 543, 550.) "One cardinal rule which is established by the cases is that an intervenor's interest must be more direct and immediate than that of a simple creditor of one of the parties." (*California Physicians' Service v. Superior Court* (1980) 102 Cal.App.3d 91, 95-96.)

Here, the subject of this action concerns Plaintiffs' claims against Defendants arising from alleged sexual abuse, exploitation, trafficking, and related misconduct. Fombona is not a plaintiff or defendant to those claims, no cause of action is asserted by or against him, and he claims no interest in the property or transactions underlying Plaintiffs' causes of action. The disposition of Plaintiffs' claims will neither impose liability upon Fombona nor adjudicate or extinguish any right belonging to him. The Court finds that these asserted interests are consequential rather than direct and immediate. Although Fombona may personally or professionally be affected by statements contained in the record, his interests will not be affected by the direct legal operation of the judgment in this action. Whether Plaintiffs or Defendants ultimately prevail will not determine whether the statements concerning Fombona are true, whether Fombona engaged in harassment or stalking, whether his activities constitute legitimate journalism, or whether he has suffered reputational or professional harm. Thus, Fombona will neither gain nor lose by the direct effect of the judgment.

Further, permitting intervention would substantially enlarge the issues in this action. Based on the foregoing, the Court finds that Fombona has failed to satisfy the requirements for either mandatory or permissive intervention under Code of Civil Procedure section 387. The motion for leave to intervene is DENIED.

IV. ORDER

The Court DENIES Fombona's motion to intervene.

Clerk is to give notice.

Dated: September 17, 2026

JARED D. MOSES

JUDGE OF THE SUPERIOR COURT